

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

RINGO C. EDWARDS, *Claimant*

v.

AEROMARINE USA, INC., *Respondent*.

DOCKET NO. 1976(I)

Served: June 30, 2022

BEFORE: Theresa DIKE, *Small Claims Officer*.

ORDER OF DISMISSAL

On April 8, 2022, the Secretary of the Federal Maritime Commission issued a Notice of Filing of Small Claims Complaint and Assignment, noting that Claimant Ringo C. Edwards had filed an informal Complaint against Respondent Aeromarine USA, Inc. The Secretary stated that a copy of the complaint had been sent to Respondent by email and that Respondent was required to file a response to the claims in the informal complaint by May 3, 2022, and to indicate whether they consent to the adjudication of the Claim under the informal procedures provided at Subpart S of the Commission's Rules of Practice and Procedure (46 C.F.R. § 502.301-305). The Secretary also assigned the proceeding to the Chief Administrative Law Judge to designate a Small Claims Officer ("SCO") to adjudicate the proceeding.

When no response was received by May 3, 2022, the Secretary sent another copy of the complaint to Respondent by UPS on May 4, 2022. The return receipt by UPS showed that the complaint was delivered to Respondent on May 5, 2022, however, no response was received from Respondents. On May 25, 2022, an Order to Respond to Complaint was issued, instructing Respondents to respond to Claimant's complaint by June 24, 2022, and that failure to do so could result in the issuance of a default decision against them for failure to file a response. On May 31, 2022, a response to the complaint was received from Respondents.

Respondents did not refuse consent to the informal procedures. Accordingly, on June 1, 2022, the Chief Administrative Law Judge assigned this proceeding to the SCO for adjudication. 46 C.F.R. § 502.301(b). On June 8, 2022, the SCO issued an Order to Submit Discovery Requests to the parties, instructing them to submit by July 8, 2022, any discovery requests that would aid them in establishing their claims and defenses.

On June 15, 2022, an email was received from Claimant, with a motion to dismiss attached. Claimant indicated that they had received a cashier's check for the full settlement of the

claimed loss and requested that the case be dismissed. There was no formal settlement agreement, so the email was merely sent to confirm that the payment was final.

Although Rule 72, governing dismissal of Commission proceedings, is not applicable to Subpart S proceedings, the undersigned used the rule as a guide for ruling on Claimant's request to dismiss the Claim.

The Commission's Rule 72(a)(1) provides:

When no settlement agreement is involved, the complainant may dismiss an action without an order from the presiding officer by filing a notice of dismissal before the opposing party serves either an answer, a motion to dismiss, or a motion for summary decision. Unless the notice or stipulation states otherwise, the dismissal is without prejudice.

46 C.F.R. § 502.72(a)(1).

The information submitted by the parties indicates that no settlement occurred between the parties and that Respondent simply paid the outstanding claim, however, Respondent has submitted an answer to the complaint. Accordingly, Claimant's request for dismissal is more appropriately granted under Rule 72(a)(3), which provides that:

[A]n action may be dismissed at the complainant's request only by order of the presiding officer, on terms the presiding officer considers proper. If the motion is based on a settlement by the parties, the settlement agreement must be submitted with the motion for determination as to whether the settlement appears to violate any law or policy and to ensure the settlement is free of fraud, duress, undue influence, mistake, or other defects which might make it unapprovable. Unless the order states otherwise, a dismissal under this paragraph is without prejudice.

46 C.F.R. § 502.72(a)(3).

There is no evidence of impropriety, and the settlement appears reasonable and does not appear to violate any law or policy. Because Claimant Ringo C. Edwards states that the parties have resolved their dispute and that Respondent has paid him the disputed amount, Claimant's request to dismiss his Claim is **GRANTED** and this proceeding is **DISMISSED WITH PREJUDICE**.



Theresa Dike
Small Claims Officer